

FEDERAL MARITIME COMMISSION

NIELSEN & BAINBRIDGE, LLC,

Complainant,

v.

EVERGREEN LINE JOINT SERVICE
AGREEMENT (FMC#01 1982), EVERGREEN
MARINE CORPORATION (TAIWAN) LTD.,
EVERGREEN MARINE (UK) LIMITED,
ITALIA MARITTIMA SPA, EVERGREEN
MARINE (HONG KONG) LTD., EVERGREEN
MARINE (SINGAPORE) PTE. LTD., and
YANG MING MARINE TRANSPORT
CORPORATION,

Respondents.

Docket No. 25-02

MOTION TO EXTEND DEADLINE

Respondents, EVERGREEN LINE JOINT SERVICE AGREEMENT (FMC#01 1982), EVERGREEN MARINE CORPORATION (TAIWAN) LTD., EVERGREEN MARINE (UK) LIMITED, ITALIA MARITTIMA SPA, EVERGREEN MARINE (HONG KONG) LTD., EVERGREEN MARINE (SINGAPORE) PTE. LTD., and YANG MING MARINE TRANSPORT CORPORATION, by their attorneys Mahoney & Keane, LLP, pursuant to 46 C.F.R. §§ 502.12, 502.69, 502.71, and 502.102, respectfully move for a one month extension of Respondents' time to submit their Appendix, Response to Complainant's Proposed Statement of Facts, Proposed Statement of Facts, and Brief, thus also pushing back Complainant's deadline for any reply papers. Including Complainant's prior motions, this represents the fifth request for an adjournment in this case. Respondents also raised the instant argument in their response to the last such motion brought by Complainant, but the Presiding Officer found that "Respondent has neither filed nor joined in a motion to extend, so it is not necessary to determine whether good cause exists

for an extension that applies only to Respondents' briefing." See, Order Denying Complainant's Fourth Motion to Extend Deadlines dated September 11, 2026, Docket Entry No.60.

The undersigned has conferred with Complainant's counsel, who advise that, "Complainant consents to the relief sought by the Motion, so long as Complainant is similarly permitted a commensurate extension to its own deadlines *i.e.*, an additional 30 days for Complainant to file its initial brief following the end of expert discovery and an additional 15 days for its reply, based upon the reasons set forth below and the fact that this proceeding involves claims against two separate respondents." Limiting the extension sought to Respondents would result in their papers being due on January 4, 2027 with any reply papers due by January 19, 2027. Also giving similar extensions to Complainant would result in its papers being due on December 31, 2026, Respondents' papers by March 1, 2027, and any reply papers by March 31, 2027.

"Trial courts have both the power and the duty to take measures to control their dockets and to ensure that counsel properly prepare cases scheduled for trial." Hornbuckle v. Arco Oil & Gas Co., 732 F.2d 1233, 1237 (5th Cir. 1984), And, so too, the Rules of the FMC "shall be construed to secure the just, speedy, and inexpensive determination of every proceeding" 46 C.F.R. § 502.1. Speed alone is not the sole concern. Id.

The current, Third Amended Scheduling Order dated July 20, 2026, Docket Entry No. 55, calls for the submission of Complainant's Brief, Proposed Statement of Facts, and Appendix by October 30, 2026, with Respondents' papers due December 1, 2026, to be followed by any reply papers on or before December 14, 2026. Respondents' time in this regard follows immediately upon the heels of one of the Respondent's October 28, 2026 deadline for such materials in the case of Dollar General Logistics, LLC v. Yang Ming Marine Transport Corp., Docket No. 25-12 (another claim with a huge record which involves the same counsel on both sides), and includes the Thanksgiving holiday..

In any event, while Complainant has had years, literally, to prepare its case, Respondents are constrained to await its submissions before going into the record documents and testimony to properly

address each allegation with targeted legal research and pinpoint citation to the appendices. There is only so much that can be done in anticipation of Complainant's filings. By definition, Respondents respond.

Moreover, expert discovery is still ongoing with further depositions to follow, and the record in this case is already massive, including some million and a half documents and several deposition transcripts. This is a monumental undertaking by any measure and warrants more than a mere month's time. Surely not every claim involves the same level of preparation. Some are small, and some are large. So a "one size fits all approach" is not warranted, and FMC ALJ's enjoy discretion to make adjustments, accordingly.

Respondents would also note that the claims against Evergreen and Yang Ming are separate and distinct. We are really dealing with two cases in one combined proceeding. This has allowed discovery in this case to advance far more efficiently and save overall time well beyond the extra month sought by the instant motion. That "good deed" in working to streamline proceedings should not be punished. Had the claims been severed or brought individually, each Respondent would have had their baseline one month's time for separate briefing and required separate case oversight and two separate decisions. The additional month should thus not be viewed as an unjustified prolongment of these proceedings but, rather, as a fair accommodation, which, when considered holistically, only furthers the Commission's interest in avoiding delay.

WHEREFORE, Respondents pray that the Motion be granted and the Scheduling Order be amended to provide an extra 30 days for Respondents to file their Appendix, Response to Complainant's Proposed Statement of Facts, Proposed Statement of Facts, and Brief, and that Respondents be awarded such other and further relief as may be deemed just and proper.

Dated: New York, New York
September 18, 2026

Respectfully submitted,

MAHONEY & KEANE, LLP
Attorneys for Respondents
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MARINE (UK) LIMITED, ITALIA MARITTIMA SPA,
EVERGREEN MARINE (HONG KONG) LTD.,
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